



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Mark Christensen, Planner II
Subject: PLN-20-00011 – Urban Use Overlay District
Date: May 19, 2021

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/24/2021
- Public Services Committee 6/08/2021
- Second reading 6/14/2021
- Public Services Committee 6/22/2021
- Third and final reading 6/28/2021

Planning Commission Recommendation:

The Planning Commission heard this item at their May 17, 2021 meeting and voted **4-0** recommending approval of the ordinance. The Planning Commission recommendation included the additions of reviewing the Right-of-Way size and including provisions regarding electric vehicle charging stations. Planning and Development staff are addressing the recommendations by:

1. Informing developers and applicants that there may be the ability to vacate some Right-of-Way and return it to property owners on a case by case basis. Staff opted not to include this component in the Urban Use Overlay as it is not specific to the district and will need to be assessed based on individual property characteristics. If staff deems right-of-way vacation appropriate, the developer will be informed at a pre-application meeting.
2. Electric vehicle charging stations have become more prevalent over the past several years. Rather than incorporate them specifically into the Urban Use Overlay, staff will assess the use holistically and develop regulations for charging stations in the UDC. Staff will determine the appropriate regulations for each zoning district through this effort, rather than drafting a section specific to the UU overlay.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____**ENTITLED: “AN ORDINANCE AMENDING THE UNIFIED DEVELOPMENT CODE (UDC) TO CREATE THE URBAN USE OVERLAY DISTRICT.”****BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:**

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the UDC.

Section 2. That the intent of this text amendment is to facilitate Urban Development in areas adjacent to the Central Business District.

Section 3. That on September 8, 2020 the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 4. That sub-section 5.4.7, Urban Use Overlay, is **created** to read as follows:

- “ a. **Intent.** The UU overlay district is intended for Urban Development adjacent to the Central Business District of Downtown Cheyenne. The UU district is intended to transition and step down from the urban core of Cheyenne into the surrounding neighborhoods.
- b. **Applicability.** The UU overlay district is applicable to various lands adjacent to the Central Business District. A base zone district of P, MUB, or MUR must be in place in order for the UU overlay to apply.
- c. **Context.** This district is most appropriate in areas with urban development patterns.
- d. **Lot and Building Standards.** The following lot and building standards shall apply and replace the lot standards for the underlying district for all uses:

TYPE UU: Urban Use Overlay District Lot and Building Standards		
Lot Area		No minimum or maximum
Lot Frontage		n/a
Setbacks (Minimum)	Front	0' minimum, 10' maximum, or context of surrounding properties
	Side	0' minimum, no maximum side setback 0' minimum, 10' maximum on street side setbacks 5' minimum and 15' maximum on lot lines fronting and adjacent to the Reed Avenue ROW

	Rear	0'
Building Height		Buildings shall not have a pinnacle height that exceeds an elevation of 6,150' in the West Edge District.
Total Lot Coverage (max.)		90%, 100% if site provides a street furnishing or projection as listed in 5.4.7.f.4.

e. **Permitted and Restricted Uses.** This section shall apply when the underlying zoning district is P, MUR or MUB.

1. Permitted Uses

a. All uses allowed in the underlying zoning district are allowed as indicated in Table 5-1, except as specifically prohibited or allowed in subsections 5.4.7.e.2 below.

2. Prohibited Uses:

The following Uses are prohibited in the UU overlay base zone districts:

- a. Impoundment Yards
- b. Outdoor Sales
- c. Automobile Service Repair
- d. Automobile Service Station – Limited and General

3. Allowed by Conditional Use in all UU overlay base zone districts:

- a. Moderate Industrial

f. **Site and Building Design Standards.** The following development standards shall supplement those contained in this Code. Wherever possible, and if not exempted, development shall comply with the standards of Article 5 and Article 6 of the UDC, and the standards of this section; however, in the event of a direct conflict the standards of this section shall govern.

1. **Parking, Lot Access and Circulation.** The minimum required Automobile Parking standards of UDC 6.2.4.a shall not apply to property within the UU district.

(a.) **Bicycle Parking.** All new development or changes of use that require a Site Plan per section UDC 2.2.3.b. shall provide 2 bicycle parking spaces per 2,000 square feet of gross floor area.

- 1. Required bicycle parking is permitted in the ROW so long as the parking does not interfere with the 5' required ADA pedestrian zone.
- 2. Applicant will have the ability to provide cash-in-lieu for bicycle parking to the shared biking facilities fund.

2. **Commercial Building Design Standards.** Development shall comply with the standards of UDC 6.7. with the following modifications:

(a.) **West Edge Area.** Properties included in the UU overlay district that fall within the West Edge district, located between 24th Street and the Union Pacific Railroad from north to south and Carey Avenue to Missile Drive from east to west, shall incorporate the design standards of UDC 6.7; or, as alternative compliance, shall incorporate the design guidelines from Chapter 5

of the 2016 West Edge Area Wide Plan into any development that requires a Site Plan Review per UDC 2.2.3.b.

(b.) **Adaptive Reuse.** Adaptive reuse is encouraged in the Urban Use Overlay District. Developments that incorporate an existing structure designated as a significant building in any overlying subarea plan, such as the 2016 West Edge Area Wide Plan, shall receive an exemption from the standards of UDC 6.7. Buildings that receive this exemption shall incorporate design guidelines from the applicable plan.

(c.) **Alternatives.** Minor deviations from the standards may be evaluated by the Director to meet the intent of the small scale commercial and mixed-use design standards of the UDC through an alternative design to allow a site-specific plan that is qualitatively equal to or better than the strict application of a design standard specified in this code. This procedure is not intended as a substitute for a variance or administrative adjustment or a vehicle for relief from standards of this Code. To grant an alternative design, the director shall find either:

1. The proposed alternative design achieves the intent of the subject design standard to the same or better degree than the subject standard; achieves the goals and policies of PlanCheyenne or the applicable plan to the same or better degree than the subject standard; and results in benefits to the community that are equivalent to or better than compliance with the subject standard; or
2. The required improvement would be ineffective because of locational, topographic, or site constraints while the alternative design can accommodate site-specific issues.

3. **Street Trees.** Shall comply with the standards of UDC 6.3.6.

4. **Street Furnishings and Projections into ROW.** May be placed in the ROW so long as the furnishing does not interfere with the 5' required ADA pedestrian zone. All street furnishings and projections into the ROW shall be shown and approved by the Site Plan process per UDC 2.2.3.b.

(a.) Street furnishings shall include benches, tables, chairs, decorative patio fencing, hosting stands, or other items permitted by the Director.

(b.) Other projections into the ROW may include awnings, patios, or other projections permitted by the Director.

Section 5. That sub-section 6.2.2.a. is amended to read as follows: "The standards in this section shall apply to all new construction and changes of use in all zoning districts, except that no parking is required in the CBD district or the UU Overlay District. When sites do elect to provide parking in the CBD district or the UU Overlay District, all maximum quantity, location, design standards and specific limitations in this Article shall apply."

Section 6. That the aforementioned Section of the UDC is hereby amended as set out within this ordinance and sections currently existing within the UDC not set out within this ordinance remain unchanged.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

(SEAL)
ATTEST:

PATRICK COLLINS, MAYOR

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune Eagle



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PLANNING COMMISSION

May 17, 2021

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code of the City of Cheyenne, Wyoming, to create the Urban Use Overlay District.

CASE NUMBER: PLN-20-00011

PREPARED BY: Mark Christensen, Planner II, Planning and Development

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code to create the Urban Use Overlay District, noting the request meets the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of Plan Cheyenne, and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

Planning efforts in the West Edge District have been underway for nearly a decade in the City of Cheyenne. One of the most consistent and critical components of these planning efforts has been the recommendation to rezone the area. The West Edge plans of both 2014 and 2016 note that the area should consider the Mixed-Use Business Emphasis or Mixed-Use Residential Emphasis zones with special characteristics. Through extensive outreach and comprehensive internal efforts, the Planning and Development Department has crafted the Urban Use overlay district to fulfill the West Edge vision. Through the efforts, staff has determined that the use of the district is prudent in the West Edge but may also be appropriate for other near downtown areas in need of redevelopment options. The Urban Use overlay district is intended for Urban Development adjacent to the Central Business District of Downtown Cheyenne. The UU district is intended to transition and step down from the urban core of Cheyenne into the surrounding neighborhoods. In order to utilize the UU overlay district, the subject properties must have a base zoning district of MUB, MUR, or P.

DISCUSSION:

Planning and Development staff began working on the Urban Use Overlay in the Spring of 2020. In the early Spring staff met with several stakeholders in the area to determine what the stakeholders expected from the rezoning effort. Several stakeholders discussed that they supported a rezoning effort but noted the need for flexibility in the zoning regulations and consistency in the applicability of the rezoning. Noting that there appeared to be broad support for the rezoning effort, staff planned an outreach strategy and steps to begin the rezoning effort. Initially staff anticipated holding a kickoff meeting on March 25, 2020; however, the meeting was postponed due to the Covid-19 pandemic. As staff realized the pandemic would be on-going for the foreseeable future, the meeting was transitioned to a web base platform. The purpose of the meeting was to determine if the content from the West Edge Plans of 2014 and 2016 was still relevant and resonated with community members. The meeting was available for 2 weeks and had 17 members of the public comment on the information. Although the participation was low, the effort yielded that the plans still resonated with the community. Through reviewing the plans and assessing preliminary outreach, staff determined a new zoning overlay should be drafted that can be applied to the MUR, MUB, and P base districts. This new district would promote redevelopment through flexible dimensional standards; exceptions for utilizing existing structures and buildings; and promoting uses compatible with the West Edge plans, such as retail, office, and a variety of residential formats. Staff anticipated drafting these regulations in the Summer of 2020; however, were unable to due to staffing shortages in the Planning and Development Department.

Staff rebooted the regulation drafting effort in October of 2020. The drafted regulations reflected the feedback staff had gauged at the Spring 2020 meeting and the content of the 2014 and 2016 West Edge Plans. After internal meeting and corrections, staff brought the draft regulations forward at several public meetings and work sessions. The meetings were presented with the Mentimeter platforms which promoted the opportunity for live feedback and polling to promote discussion. The results of the meetings are included as an attachment in this staff report. Staff held the following meetings for public outreach:

- Reed Avenue Rail Corridor Steering Committee – December 7, 2020
- Planning Commission Work Session – January 18, 2021
- Downtown Development Authority Work Session – February 21, 2021
- West Edge Public Meeting – February 23, 2021
- West Edge Public Meeting Online Edition – February 23 – March 15, 2021
- City Council Work Session – March 19, 2021

After the extensive public outreach, staff reassessed the drafted regulations and made targeted changes. Most of the comments reinforced the regulations as drafted and were in support of many of the concepts staff has put forward. The proposed amendments are included in the following section of the staff report. In general, the amendments promote flexibility in uses by permitting uses included in the base zoning districts of MUB, MUR, and P; allow existing buildings to be utilized noting their likely non-conformities to promote adaptive reuse; remove parking minimums to allow the developer and their financing mechanisms to determine how much parking will ultimately be provided; create more bicycle parking and active street fronts to foster a multi-modal and pedestrian friendly environment; and simplify the dimensional standards to remove the difficulty in interpretation of lot types.

The drafting and adoption of the Urban Use Overlay district is the first step in rezoning the West Edge. Once these regulations are adopted, staff will lead a mapping effort to rezone the entirety of the West Edge to Mixed-Use Business Emphasis with the Urban Use Overlay. This will be a City-initiated rezoning, consistent with the feedback heard at all outreach meetings. In addition to this, it is important to note

that the Urban Use Overlay can be applied to any property zoned MUB, MUR, or CBD and can be mapped in various other areas of the community in need of redevelopment.

PROPOSED AMENDMENTS:

The proposed amendments include the creation and amendments of the following sections taken from the drafted ordinance:

Section 4. That sub-section 5.4.7, Urban Use Overlay, is created to read as follows:

- a. **“Intent.** The UU overlay district is intended for Urban Development adjacent to the Central Business District of Downtown Cheyenne. The UU district is intended to transition and step down from the urban core of Cheyenne into the surrounding neighborhoods.
- b. **Applicability.** The UU overlay district is applicable to various lands adjacent to the Central Business District. A base zone district of P, MUB, or MUR must be in place in order for the UU overlay to apply.
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- d. **Lot and Building Standards.** The following lot and building standards shall apply and replace the lot standards for the underlying district for all uses:

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Building Height		Buildings shall not have a pinnacle height that exceeds an elevation of 6,150' in the West Edge District.
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 1. **Permitted Uses:**
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 2. **Prohibited Uses:**

The following Uses are prohibited in the UU overlay base zone districts:

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 - b. Outdoor Sales
 - c. Automobile Service Repair

d. Automobile Service Station – Limited and General

3. Allowed by Conditional Use in all UU overlay base zone districts:

a. Moderate Industrial

- f. **Site and Building Design Standards.** The following development standards shall supplement those contained in this Code. Wherever possible, and if not exempted, development shall comply with the standards of Article 5 and Article 6 of the UDC, and the standards of this section; however, in the event of a direct conflict the standards of this section shall govern.

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- i. Required bicycle parking is permitted in the ROW so long as the parking does not interfere with the 5' required ADA pedestrian zone.
- ii. Applicant will have the ability to provide cash-in-lieu for bicycle parking to the shared biking facilities fund.

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(b.) Adaptive Reuse. Adaptive reuse is encouraged in the Urban Use Overlay District. Developments that incorporate an existing structure designated as a significant building in any overlying subarea plan, such as the 2016 West Edge Area Wide Plan, shall receive an exemption from the standards of UDC 6.7. Buildings that receive this exemption shall incorporate design guidelines from the applicable plan.

(c.) Alternatives. Minor deviations from the standards may be evaluated by the Director to meet the intent of the small scale commercial and mixed-use design standards of the UDC through an alternative design to allow a site-specific plan that is qualitatively equal to or better than the strict application of a design standard specified in this code. This procedure is not intended as a substitute for a variance or administrative adjustment or a vehicle for relief from standards of this Code. To grant an alternative design, the director shall find either:

- i. The proposed alternative design achieves the intent of the subject design standard to the same or better degree than the subject standard; achieves the goals and policies of PlanCheyenne or the applicable plan to the same or better degree than the subject standard; and results in benefits to the community that are equivalent to or better than compliance with the subject standard; or
- ii. The required improvement would be ineffective because of locational, topographic, or site constraints while the alternative design can accommodate site-specific issues.

3. **Street Trees.** Shall comply with the standards of UDC 6.3.6.

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- (a.) Street furnishings shall include benches, tables, chairs, decorative patio fencing, hosting stands, or other items permitted by the Director.
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Section 5. That sub-section 6.2.2.a. is amended to read as follows: “The standards in this section shall apply to all new construction and changes of use in all zoning districts, except that no parking is required in the CBD district or the UU Overlay District. When sites do elect to provide parking in the CBD district or the UU Overlay District, all maximum quantity, location, design standards and specific limitations in this Article shall apply.”

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

“The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan.”

This proposed text amendment is consistent with the principles and policies within PlanCheyenne. Specifically, the proposed amendment addresses the following policies and principles:

- *Policy 1.1.B: Flexibility to Respond to Market Demands.*
The UU Overlay text amendment will provide flexibility with zoning regulations to promote infill development, adaptive reuse, and redevelopment of an important area in the City of Cheyenne. The flexibility should incentivize the market to consider developing in the West Edge.
- *Policy 1.4.A: Infill Opportunities*
The Urban Use Overlay text amendment provides the opportunity for infill development through regulations that promote flexibility, but also consider the character of the area in which they are located.
- *Policy 1.4.C: Downtown Revitalization and Mix of Uses*
The Urban Use Overlay can be applicable to the MUR, MUB, and P zone districts in or adjacent to downtown. As the Urban Use Overlay is applied to the West Edge it is anticipated to revitalize the area and further mix uses in the area. Staff anticipates the development of the West Edge will greatly benefit the downtown as a whole.
- *Policy 1.4.D: Infill and Revitalization Incentives*
The Urban Use overlay achieves several items that are mentioned in this policy; such as reducing parking minimums, providing flexible dimensional standards, promoting higher densities than currently permitted, and providing flexibility in design requirements for utilizing existing buildings.
- *Policy 2.3.A: Mix of Housing Types*
The Urban Use Overlay will lead to the West Edge being zoned MUB or MUR; each of which provide ample opportunities for a variety of housing.

- *Policy 3.2.B: Active Uses in the Street Level*
The Urban Use Overlay promotes active uses on the street level by permitting various street furnishings and projections into the Right of Way.
- *Principle 4.3: The Cheyenne Area will build a safe, multimodal transportation system that consists of streets, sidewalks, bicycle facilities, and transit*
The Urban Use Overlay promotes bicycle infrastructure and pedestrian amenities through increased bicycle parking and an active pedestrian zone.
- *Policy 5.1.A: Historic Building Restoration*
The Urban Use Overlay promotes building reuse and restoration with flexible site design and building placement requirements for utilizing existing buildings.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-602 (a): The governing body shall specify how regulations, restrictions and the district boundaries are to be determined, established, enforced, amended, supplemented or otherwise changed.

Assessment: State statute states that the governing body shall specify how regulations regarding zoning are established and enforced. The governing body possesses the authority to amend regulations and therefore can amend the *Unified Development Code* to reflect this text amendment.

WYO 15-1-601 (a): The governing body of any city or town, by ordinance, may:
(i) Regulate and restrict the:
(D) Density of the population
(E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.

Assessment: This amendment proposes modifying the Unified Development Code for the purposes of regulating the location of buildings and density of the population; thus, fulfilling the requirements of this statute.

WYO 15-1-601(d): All regulations shall be made:
(ii) With reasonable consideration, among other things, of the character of the district and its peculiar suitability for particular uses;
(iii) With a view to conserving the value of buildings and encouraging the most appropriate use of land throughout the city or town.

Assessment: This amendment proposes modifying the Unified Development Code for the purposes of encouraging redevelopment and infill development in the City of Cheyenne with respect to the existing character of the districts to which these regulations are applied. Furthermore, these regulations contain provisions for height regulations to preserve views of existing prominent structures. Regulations of this nature are allowable under state statute and may be modified by the Governing Body.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment will promote general health, safety, and public welfare by reinvesting in the community and promoting walkable, mixed-use development. Furthermore, it is anticipated that this amendment will promote much needed housing development in the community.

CONCLUSION:

The Urban Use Overlay district provides an effective framework for redevelopment in near-downtown neighborhoods in Cheyenne, specifically in the West Edge District. The proposed amendments have been vetted through significant public outreach and substantially conform to Plan Cheyenne and the West Edge Area plans. Adoption of the Urban Use Overlay is an important step in West Edge redevelopment and staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code to create the Urban Use Overlay District, noting the request meets the review criteria of UDC 2.4.1.d.